THE RIGHT INVESTMENTS (PRIVATE) LIMITED
versus
GILBERT MUPONDA
and
NYASHA WATYOKA
and
KUNZE KWAYEDZA ENTERPRISES (PRIVATE) LIMITED
and
PHILLIPA ANN COUMBIS
and
THE REGISTRAR OF DEEDS N.O
and
THE REGISTRAR OF COMPANIES AND OTHER BUSINESS ENTITIES

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 4 June and 19 November 2025

T W Nyamakura, for the applicant
T Govere, for the first and second respondents
No appearance for the third to sixth respondents

Court Application for Setting Aside of a Judgment

TAKUVA J: This is a court application for setting aside of a judgment in terms of r 29(2) of the High Court Rules, 2021 and the common law. The Applicant seeks the following order:

1. The judgment of this court dated 14 September 2022, handed down under case number HC5385B/2022, being a nullity for fraud, be and is hereby set aside.
2. For the avoidance of doubt, any act done by the first and second respondents pursuant to and in terms of that order are declared null and void.
3. The first and second respondents are interdicted and restrained from purporting to be directors, shareholders, or officers of the applicant.
4. Costs of the application shall be borne by the parties opposed to it, on a scale of attorney and own client, jointly and severally, the one paying the others to be absolved.

5. As regards parties who consent or otherwise do not oppose the application, each party shall pay its own costs.

Background Facts

The applicant is a duly incorporated company in terms of the laws of Zimbabwe. The application is made through one of its directors, Martin Murimirambewa, who avers that he is duly authorised to depose to the founding affidavit and to institute these proceedings on behalf of the applicant. The authority is evidenced by a company resolution and the CR6 form annexed to the founding papers.

On 14 September 2022, an order was granted by this court in case number HC 5385B/22 in the name of the applicant. The order set aside Deed of Transfer No. 558/21 issued in favour of Kunze Kwayedza Enterprises (Private) Limited. The applicant contends that the said order was fraudulently obtained by the first and second respondents, who falsely represented themselves as directors and authorised representatives of the applicant.

The applicant claims it only became aware of the existence of that order on 26 October 2022, after the City of Harare informed the lawful directors that the deed of transfer had been cancelled through a court order. Upon perusal of the record, it emerged that the founding affidavit in HC 5385B/22 had been deposed to by the second respondent, based on a purported company resolution signed by the first respondent on 2 August 2022.

The applicant avers that the first and second respondents ceased to have any legal or beneficial interest in the applicant following the liquidation of ENG Capital Investments (Private) Limited in 2004, whose assets were sold to Prosdeng Investments (Private) Limited. The Supreme Court in SC 130/21 and the High Court in HH 820/20 confirmed that the first and second respondents were no longer directors or shareholders of the applicant. Despite these rulings, the first and second respondents continued to hold themselves out as directors but also to act fraudulently in the applicant's name, thereby necessitating the present application for rescission and interdict.

Preliminary Point

The first and second respondents raised a preliminary point to the effect that there exist material disputes of fact that cannot be resolved on the papers, and that the matter ought to be referred to trial. The court finds no merit in this contention. The so-called disputes raised by the first and second respondents are neither genuine nor *bona fide*. They relate to

their alleged directorship of the applicant, an issue already conclusively determined in HH 820/20 and SC 130/21, where both courts held that the first and second respondents had ceased to be directors and shareholders of the applicant.

It is trite that a dispute of fact must be real and substantial, not a contrived or self-serving denial. (See *Muzanenhamo* v *Officer in Charge CID Law and Order & Ors* 2013 (2) ZLR 196 (H).) The first and second respondents have placed before the court nothing but bald assertions unsupported by any documentary proof, whereas the applicant has produced official company registration documents confirming its lawful structure. Accordingly, the point *in limine* premised on an alleged dispute of fact is dismissed.

Applicable Law and Analysis

At common law, a court order obtained through fraud or misrepresentation is a nullity and may be rescinded. (See *Chifamba* v *Mutasa* 1988 (2) ZLR 385 (S). The court will not permit its process to be used to perpetrate injustice. The applicant has produced documentary evidence showing that the first and second respondents are not its directors. The Companies Registry CR6 confirms Martin Murimirambewa and Leno de Villiers as the only current directors of the applicant. Furthermore, the Supreme Court in SC 130/21 vested 80% of the applicant's shares in Philippa Ann Coumbis, thereby extinguishing any claim by the first and second respondents to ownership or control.

The company resolution used to institute the proceedings in HC 5385B/22 was therefore a nullity, having been signed by persons without authority. In *Chibanda* v *King* 1983 (1) ZLR 116 (H), the court held that one who approaches the court must do so in good faith and with clean hands. The first and second respondents' conduct here was the very opposite of that. The court will not exercise its equitable discretion in favour of one who approaches it with unclean hands or for purposes of delay or deceit. *In casu*, the first and second respondents, having fraudulently obtained an order without authority, cannot benefit from the court's indulgence.

As regards the interdict, the requirements are settled: a clear right, an actual or reasonably apprehended injury, and the absence of an adequate alternative remedy as established in the case of *Setlogelo* v *Setlogelo* 1914 AD 221. The applicant has demonstrated all three. Its corporate identity is under threat from persistent fraudulent acts, and no other remedy exists save judicial intervention. The Respondents' conduct in repeatedly

misrepresenting themselves as directors is not only fraudulent but amounts to a gross abuse of court process. The court therefore finds in favour of the applicant.

Disposition

Accordingly, it is ordered that:

1. The judgment of this court dated 14 September 2022, handed down under case number HC5385B/2022, being a nullity for fraud, be and is hereby set aside.
2. For the avoidance of doubt, any act done by the first and second respondents pursuant to and in terms of that order are declared null and void.
3. The first and second respondents are interdicted and restrained from purporting to be directors, shareholders, or officers of the applicant.
4. The first and second respondents shall pay the costs of suit, jointly and severally on a scale of attorney and client scale, the one paying the other to be absolved.
5. As regards parties who consent or otherwise do not oppose the application, each party shall pay its own costs.

TAKUVA J:……..

Makiya & Partners, applicant's legal practitioners
Govere Law Chamber, first and second respondents' legal practitioners